

RIGHTS AND LIABILITIES OF THE GOVERNMENT

GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR – SUCCESSION, OWNERLESS PROPERTY AND – ARTICLES 298 AND 299 – DEFECTIVE CONTRACT AND RESTITUTION – ARTICLE 300 AND THE – PRIVATE TORT AND THE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

STAGE 00 GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR AND SUABLE LEGAL PERSON

GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR AND SUABLE LEGAL PERSON ROOT QUESTION HOW CAN THE STATE EXERCISE PUBLIC POWER YET REMAIN PART XII, CHAPTER III ARTICLES 294-297 SUCCESSION, OWNERLESS AND MARITIME PROPERTY ARTICLE 298

TRADE, BUSINESS, PROPERTY AND CONTRACT CAPACITY

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can the State exercise public power yet remain answerable as a legal actor?
- PART XII, CHAPTER III

POWER / PROCEDURE

- Articles 294-297 → succession, ownerless and maritime property
- Article 298 → trade, business, property and contract capacity
- Article 299 → mandatory government-contract form

CHECK / LIMIT

- Article 300 → suits, proceedings and liability continuity.
- SEPARATE LINK
- Article 300A → private property may be deprived only by authority of law.

FEDERAL / RIGHTS IMPACT

- MASTER DISTINCTION official personal protection != governmental immunity from review or liability.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 298 governs governmental property capacity and Article 300A protects against deprivation without law, but neither substitutes for contract or suit provisions.

STAGE 01 SUCCESSION, OWNERLESS PROPERTY AND REORGANISATION

SUCCESSION, OWNERLESS PROPERTY AND REORGANISATION ARTICLES 294-295 COMMENCEMENT CONTINUITY UNION/STATE SUCCEEDS TO PROPERTY, RIGHTS AND LIABILITIES. ARTICLE 296 ESCHATE/LAPSE/BONA VACANTIA LOCATION RULE + GOVERNMENTAL-PURPOSE PROVISIO. ARTICLE 297 SPECIFIED MARITIME LANDS, MINERALS AND RESOURCES LATER REORGANISATION STATUTE/AGREEMENT ASSETS + DEBT + GUARANTEES + EMPLOYEES

ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.

ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

ARTICLE 297 specified maritime lands, minerals and resources → Union.

LATER REORGANISATION statute/agreement → assets + debt + guarantees + employees

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.
- ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

POWER / PROCEDURE

- ARTICLE 297 specified maritime lands, minerals and resources → Union.
- LATER REORGANISATION statute/agreement → assets + debt + guarantees + employees

CHECK / LIMIT

- contracts/licences + records + pending proceedings.
- TRAP no universal apportionment formula; use the exact reorganisation instrument.

FEDERAL / RIGHTS IMPACT

- ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.
- ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

MECHANISM / VERDICT — ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 294 and 295 manage constitutional commencement, while later territorial reorganisation allocates assets, liabilities and proceedings through the applicable statute or agreement.

STAGE 02 ARTICLES 298 AND 299: CAPACITY BEFORE VALID COMMITMENT

ARTICLES 298 AND 299 CAPACITY BEFORE VALID COMMITMENT ARTICLE 298 EXECUTIVE CAPACITY TO TRADE, DO BUSINESS, ACQUIRE/HOLD/DISPOSE ARTICLE 299 MANDATORY FORM EXPRESSED IN PRESIDENT/GOVERNOR'S NAME EXECUTED VALID PUBLIC COMMITMENT

NO PERSONAL LIABILITY OF HEAD/AUTHORISED SIGNATORY. TRAP CAPACITY PERSONAL IMMUNITY

ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.

ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on behalf of that constitutional head

→ prescribed manner.

→ valid public commitment → no personal liability of head/authorised signatory.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.
- ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on behalf of that constitutional head authorised person and

POWER / PROCEDURE

- prescribed manner.
- valid public commitment → no personal liability of head/authorised signatory.

CHECK / LIMIT

- TRAP capacity != authority
- signature != authorisation

FEDERAL / RIGHTS IMPACT

- personal immunity != State immunity.
- ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 294 and 295 preserve succession of public assets and liabilities, establishing the State as a juristic successor rather than personally liable officeholders.

STAGE 03 DEFECTIVE CONTRACT AND RESTITUTION

DEFECTIVE CONTRACT AND RESTITUTION ARTICLE 299 DEFECT PURPORTED CONTRACT UNENFORCEABLE AS GOVERNMENT CONTRACT. INDEPENDENT SECTION 70 ROUTE LAWFUL ACT/DELIVERY + NON-GRATUITOUS INTENTION RESTITUTION MEASURED BY BENEFIT. B.K. MONDAL & SONS (1961) NON-GRATUITOUS BENEFIT CAN CREATE MULAMCHAND V. STATE OF MADHYA PRADESH (1968) MANDATORY ARTICLE LIMIT QUANTUM MERUIT DOES NOT VALIDATE THE CONTRACT OR

CONSTITUTIONAL BASIS / ARTICLE
ARTICLE 299 DEFECT purported contract unenforceable as government contract.

INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

POWER / PROCEDURE
restitution measured by benefit.

B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.

CHECK / LIMIT
Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.
LIMIT quantum meruit does not validate the contract or automatically award contract price.

FEDERAL / RIGHTS IMPACT
ARTICLE 299 DEFECT purported contract unenforceable as government contract.

INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

CONSTITUTIONAL BASIS / ARTICLE
• ARTICLE 299 DEFECT purported contract unenforceable as government contract.
• INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

POWER / PROCEDURE
• restitution measured by benefit.
• B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.

CHECK / LIMIT
• Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.
• LIMIT quantum meruit does not validate the contract or automatically award contract price.

FEDERAL / RIGHTS IMPACT
• ARTICLE 299 DEFECT purported contract unenforceable as government contract.
• INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Failure of Article 299 form can defeat contractual enforcement, but restitution may still prevent the State from retaining a non-gratuitous benefit unjustly.

STAGE 04 ARTICLE 300 AND THE CIVIL-SUIT ROUTE

ARTICLE 300 AND THE CIVIL-SUIT ROUTE PROPER PARTY UNION MATTER UNION OF INDIA STATE MATTER NAME OF STATE. CPC SECTION 79 PARTY DESCRIPTION IN GOVERNMENT LITIGATION. CPC SECTION 80 ORDINARY OFFICIAL-ACT SUIT

CONSTITUTIONAL BASIS / ARTICLE

- PROPER PARTY
- Union matter → Union of India
- State matter → name of State.

POWER / PROCEDURE

- CPC SECTION 79 party description in government litigation.
- CPC SECTION 80 ordinary official-act suit → two-month prior notice
- Section 80(2) court-controlled urgent/immediate-relief route.

CHECK / LIMIT

- PROCEEDING cause of action → correct party → notice/exception → pleading/evidence
- decree/appeal/enforcement subject to law.
- TRAP procedural notice != substantive sovereign immunity.

FEDERAL / RIGHTS IMPACT

- CPC SECTION 79 party description in government litigation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 296 allocates escheat, lapse and bona vacantia by territorial and governmental purpose, preventing ownerless property from remaining legally unvested.

STAGE 05 PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY P & O STEAM NAVIGATION (1861) COLONIAL SOVEREIGN/NON-SOVEREIGN DISTINCTION. STATE OF RAJASTHAN V. VIDYAWATI (1962) ORDINARY OPERATIONAL NEGLIGENCE KASTURI LAL V. STATE OF UTTAR PRADESH (1964) OLDER

N. NAGENDRA RAO & CO. (1994) BROAD IMMUNITY UNTENABLE VERDICT NO BLANKET FORMULA IDENTIFY FUNCTION, DUTY, CAUSATION AND REMEDY.

P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.

→ State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

→ Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.

→ N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is

→ VERDICT no blanket formula: identify function, duty, causation and remedy.

CONSTITUTIONAL BASIS / ARTICLE
• P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.
• State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

POWER / PROCEDURE
• Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.
• N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is narrow.

CHECK / LIMIT
• VERDICT no blanket formula: identify function, duty, causation and remedy.
• P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.

FEDERAL / RIGHTS IMPACT
• State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.
• Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Private-law sovereign immunity has narrowed as welfare-state functions expanded, but liability still depends on the governing facts, statute and current judicial doctrine.

STAGE 06 CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY

CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY PUBLIC-LAW COMPENSATION RUDUL SAH V. STATE OF BIHAR (1983) UNLAWFUL DETENTION COMPENSATION. NILABATI BEHERA V. STATE OF ORISSA (1993) FUNDAMENTAL-RIGHT REMEDY DISTINCT. STATE OF ANDHRA PRADESH V. CHALLA RAMKRISHNA REDDY (2000) PRISON-RIGHTS ACCOUNTABILITY.

PUBLIC-LAW COMPENSATION

Rudul Sah v. State of Bihar (1983) → unlawful detention compensation.

→ Nilabati Behera v. State of Orissa (1993) → Fundamental-Right remedy distinct.

→ State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

CONSTITUTIONAL BASIS / ARTICLE

- PUBLIC-LAW COMPENSATION
- Rudul Sah v. State of Bihar (1983) → unlawful detention compensation.
- Nilabati Behera v. State of Orissa (1993) → Fundamental-Right remedy distinct.

POWER / PROCEDURE

- State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)
- prison-rights accountability.
- PRIVATE TORT duty + breach + causation + damage + vicarious-employment nexus.

CHECK / LIMIT

- OFFICIAL RESPONSIBILITY
- State liability may coexist with disciplinary, criminal or personal liability.
- LIMIT writ compensation vindicates rights; it does not replace every civil trial.

FEDERAL / RIGHTS IMPACT

- State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional tort awards public-law compensation for established rights violations, but neither determines every private damages claim nor eliminates ordinary trial.

STAGE 07 PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES ARTICLE 300A DEPRIVATION OF PRIVATE PROPERTY ONLY BY AUTHORITY PROCUREMENT RAIL NEED/SANCTION FAIR CRITERIA/COMPETITION REASONED AWARD ARTICLE 299 EXECUTION ARBITRATION VALID AUTHORISED CLAUSE

STATUTORY CHALLENGE/ENFORCEMENT.

CONSTITUTIONAL BASIS / ARTICLE
ARTICLE 300A deprivation of private property only by authority of law.

PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award
Article 299 execution → performance/payment → CAG/audit.

POWER / PROCEDURE
ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.
PROTECTION FIREWALL
Article 361

CHECK / LIMIT
Article 299 signatory rule
CPC notice
privilege are separate sources with separate limits.

FEDERAL / RIGHTS IMPACT
GeM/manual/draft reform != constitutional or statutory amendment.

CONSTITUTIONAL BASIS / ARTICLE
• ARTICLE 300A deprivation of private property only by authority of law.
• PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award
• Article 299 execution → performance/payment → CAG/audit.

POWER / PROCEDURE
• ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.
• PROTECTION FIREWALL
• Article 361

CHECK / LIMIT
• Article 299 signatory rule
• CPC notice
• privilege are separate sources with separate limits.

FEDERAL / RIGHTS IMPACT
• GeM/manual/draft reform != constitutional or statutory amendment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public contracts, property disposal, procurement and commercial action remain subject to equality, statutory power, appropriation, audit and judicial review.

STAGE 08 UPSC SYNTHESIS: NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW

UPSC SYNTHESIS NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW PRELIMS FIREWALL 294/295 SUCCESSION 296 OWNERLESS PROPERTY 297 MARITIME RESOURCES 298 CAPACITY 299 FORM

PRELIMS FIREWALL → 294/295 succession → 296 ownerless property → 297 maritime resources → 298 capacity

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- 294/295 succession
- 296 ownerless property
- 297 maritime resources

POWER / PROCEDURE

- 298 capacity
- 299 form
- 300 suits
- 300A property right

CHECK / LIMIT

- Section 70 restitution != valid contract
- Section 80 notice != immunity.
- MAINS SPINE legal person → property/succession → capacity/form
- restitution → suit procedure → private tort

FEDERAL / RIGHTS IMPACT

- constitutional tort → procurement/arbitration → qualified reform.
- PYQ SPINE
- 2025 immunity statements test source separation, not blanket State immunity.
- VERDICT public power carries special form and protection, but remains legally answerable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 300A cannot govern contracts, Article 361 does not create State immunity, and the sovereign-function distinction cannot be stated as an absolute bar.

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT FORCE MAJEURE AND CHANGE IN LAW TERMINATION FOR PUBLIC INTEREST BLACKLISTING AND PROCEDURAL FAIRNESS PUBLIC-LAW REVIEW OF AN OTHERWISE CONTRACTUAL DECISION. COMBAT, FOREIGN AFFAIRS AND CORE LEGISLATIVE/JUDICIAL FUNCTIONS

POLICING, CUSTODY AND COERCIVE POWER ORDINARY TRANSPORT, PROPERTY AND COMMERCIAL OPERATIONS

OPTIONAL DOCTRINE / CASE

- force majeure and change in law;
- termination for public interest;
- blacklisting and procedural fairness;
- public-law review of an otherwise contractual decision.

ADVANCED LIMIT

- combat, foreign affairs and core legislative/judicial functions;
- policing, custody and coercive power;
- ordinary transport, property and commercial operations;
- every official wrong creates State liability;

COMPARATIVE NUANCE

- State liability excludes personal liability;
- a bona fide mistake automatically attracts damages; or
- mala fide conduct is protected merely because public office supplied the opportunity.
- waive every statutory or constitutional defence;

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.